

	application of law to the facts found by the court. Code of Civil Procedure section 527.6, subdivision (j)(1) authorizes the court to renew a civil harassment restraining order <u>without any showing of further harassment by the respondent.</u> But in this case, the petitioner offered evidence that, after the restraining order issued, respondent continued to engage in the acts of harassment, requiring her to call the police on three different occasions. And, while respondent moved out of his unit after that, he testified he still owns the property and intends to move back into it at some point. There was no erroneous application of the law to these undisputed facts. Respondent contends this court erred by following the opinion of the appellate court. This court is bound to follow the appellate court's holding affirming the issuance of a restraining order against respondent. Under the doctrine of "law of the case," any principle or rule of law stated in an appellate court opinion that is "necessary" to the court's decision must be followed in all subsequent proceedings in the action, whether in the trial court or on a later appeal. (<i>Leider v. Lewis</i> (2017) 2 Cal.5th 1121, 1127; <i>Sargon Enterprises, Inc. v. University of Southern Calif.</i> (2013) 215 Cal.App.4th 1495, 1505-1506; <i>Santa Clarita Organization for Planning the Environment v. County of Los Angeles</i> (2007) 157 Cal.App.4th 149, 156.) Respondent also argues this court erred by failing to consider his evidence of petitioner's alleged perjury due to the filing and later dismissal of an earlier request for a civil harassment restraining order. Respondent continues to argue this was a fraud on the court. In that case, No. 30-2023-01351705, petitioner Kubo filed a request for civil harassment restraining order; this court denied a request for a temporary restraining order; and petitioner voluntarily dismissed the action without prejudice. The court did not rule on the merits of petitioner's claim in case No. 30-2023-01351705, and this court has found that petitioner did not commit a fraud upon the court by failing to list the previous case when she filed the paperwork for the present case. None of this is grounds for vacating the order renewing the restraining order. Respondent also argues this court erred by granting the renewal because Petitioner's written request for the renewal said the harassment by respondent was continued or continuous, when respondent had been living elsewhere for part of the time the restraining order was in place. The court had ample evidence before it that, when respondent was present after the restraining order was issued, the acts of harassment continued to occur. Respondent contends that he did not commit the acts of harassment because (1) others in Petitioner's unit did not complain to the police or seek a restraining order, (2) the district attorney did not prosecute him, or (3) petitioner had
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		not proven the acts of harassment were not caused by respondent's wife. None of these establishes this court erroneously applied the law to the facts found by the court in this case.
37	1501 NB v. Hawkey	Motion to Set Aside/Vacate Default and Default Judgment